

CEBULANDMARKET

Property Seller Listing Agreement · CebuLandMarket Property Services · cebulandmarket.com

This Agreement is entered into by and between:

THE PLATFORM: CEBULANDMARKET PROPERTY SERVICES, a DTI-registered sole proprietorship (Business Name No. 7923972; Reference No. CNFH421018791672) owned and operated by **REAFIL B. RUSIANA**, operating the website **cebulandmarket.com** (“CLM”, “we”, “us”); and

THE SELLER: _____ (Full Name), of legal age, with address at _____, contact number _____, email _____ (“Seller”, “you”).

Date: _____

1. Purpose

The Seller engages CLM to publicly list the Seller's real property (“the Property”) for sale on cebulandmarket.com and CLM's marketing channels, and to facilitate introductions to interested buyers.

Property Location / Address

Lot Area / Type · Title No. / Tax Dec. No.

Seller's Asking (Base) Price (₱)

2. Listing Fee

2.1. The Seller pays a **one-time listing fee of ₱100** via GCash to **0968 751 2330 (account name: CebuLandMarket)** before the Property is published.

2.2. The listing fee covers intake and document verification (due diligence). It is **non-refundable once the listing is approved and published**.

2.3. **Refund guarantee:** If CLM cannot approve the listing after document verification (e.g., title issues, incomplete papers), the Seller receives a **full ₱100 refund**.

3. Document Verification (Due Diligence)

3.1. The Seller must submit, before listing: a copy of the Transfer/Original Certificate of Title (or equivalent), the latest Tax Declaration and Tax Clearance, a valid government-issued ID, and — if selling on behalf of another — a notarized Special Power of Attorney or Authority to Sell.

3.2. CLM verifies these documents in good faith. Verification confirms documents were submitted and reviewed; it is **not a legal guarantee of title** and does not replace the buyer's own due diligence or a lawyer's title examination.

4. Platform Service Fee (1%)

4.1. A **platform service fee equal to one percent (1%) of the asking price** applies. This 1% is added to the price displayed to buyers; the Seller still receives their full base asking price.

4.2. Upon a completed sale of the Property to a buyer introduced through CLM, the Seller acknowledges that the 1% platform fee belongs to CLM and authorizes its settlement at closing via GCash, with proof of payment (GCash screenshot) provided to info@cebulandmarket.com.

5. Anti-Circumvention

5.1. If a buyer is introduced, referred, or connected to the Seller through CLM, the **1% platform fee remains due to CLM** even if the parties attempt to complete the transaction privately, off-platform, or through a third party, for a period of **twelve (12) months** from the date of introduction.

5.2. Deliberately bypassing CLM to avoid the platform fee is a material breach of this Agreement and may result in delisting and legal action to recover the fee.

6. Seller Warranties

The Seller warrants that: (a) they are the lawful registered owner of the Property or a duly authorized representative; (b) all documents and information provided are genuine, accurate, and complete; (c) the Property is free from undisclosed liens, encumbrances, adverse claims, or pending litigation; and (d) the Property is not simultaneously the subject of an exclusive sale mandate with another broker that conflicts with this listing.

7. Listing Duration & Showings

7.1. The listing stays active until the Property is sold or the Seller requests removal in writing (email to info@cebulandmarket.com). There is **no expiration**.

7.2. CLM (or its owner) personally accompanies interested buyers to view the Property. The Seller agrees to cooperate reasonably in scheduling and providing access for viewings.

8. Optional Title & Paperwork Processing

CLM offers an **optional** title transfer and paperwork processing service for a separate fee of **₱50,000**, paid by the Seller directly, independent of the listing fee and platform fee. This service is elected at the Seller's discretion and is not required to list.

9. No Guarantee of Sale

CLM is a listing and marketing platform and facilitator. CLM does not buy the Property and does not guarantee that the Property will sell within any particular timeframe or at any particular price.

10. Misrepresentation

Submission of falsified documents or materially false information results in **immediate delisting, forfeiture of the listing fee, and possible civil or criminal action**. The Seller indemnifies CLM against any claim arising from the Seller's misrepresentation.

11. Liability

The sale contract is solely between the Seller and the buyer. CLM is not a party to the deed of sale and is not liable for the parties' performance, payment, or post-sale disputes beyond its document-verification and introduction role.

12. Data Privacy

The Seller consents to CLM collecting, storing, and processing the Seller's information, and to publicly displaying the Property details, in accordance with the Data Privacy Act of 2012 (R.A. 10173). Personal contact details are recorded in CLM's internal seller records and are not published publicly without consent.

13. Non-Exclusive

This listing is **non-exclusive**. The Seller may market the Property elsewhere but must notify CLM in writing within 24 hours once the Property is sold or withdrawn so the listing can be updated.

14. Termination

Either party may terminate this Agreement with written notice. The Seller may request listing removal at any time. Fees already earned under Sections 4 and 5 survive termination.

15. Governing Law

This Agreement is governed by the laws of the Republic of the Philippines. Any dispute shall be brought before the proper courts of **Cebu**.

Signatures

By signing below, the Seller confirms they have read, understood, and agreed to all terms of this Agreement.

Seller's Signature over Printed Name	Date
Valid ID Presented	ID Number
REAFIL B. RUSIANA — for CebuLandMarket Property Services	Date